1.0 INSTRUCTIONS TO OFFERORS

1.1. Questions regarding this solicitation shall be in writing and directed via email to Brandon Johnson **at** brandon.n.johnson24.civ@army.mil and Angela Triplett at angela.m.triplett.civ@army.mil. All correspondence shall reference solicitation number W91QF5-23-R-0013. The cut-off for questions is 4:00pm ET 24 February 2023**. All questions will be answered electronically so that all the 8(a) Contractors will see both the question and the answer. However, the identity of the person/company asking the question will not be disclosed.**

1.2. Offerors are notified that the Government will not reimburse costs incurred for solicitation preparation, to include pre-award site visits.

1.3. The Government will conduct evaluations using the best value Lowest Price Technically Acceptable (LPTA) approach and will follow FAR 16.505 Ordering, and paragraph 5 of this solicitation, Evaluation Criteria, considering solely the Offeror's response to this solicitation.

1.4. Although the Government does not intend to hold discussions/communications, the Government does reserve the right to negotiate with one or more but not necessarily all Offerors, for any reason. Any solicitation revisions shall be limited to the items negotiated.

1.5. The Offeror shall submit an unclassified proposal which demonstrates its ability to perform and meet the requirements in the solicitation PWS.

1.6. Proposals shall conform to all the requirements of this solicitation. Failure to conform may result in your proposal being rejected and no longer considered for award.

1.7. If the value of this TO is expected to exceed $10,000,000, your firm shall be in compliance with the Equal Employment Opportunity (EEO) regulations before award of the resultant TO. Ensure your firm is on the Department of Labor EEO National Pre-Award Registry or that you can provide verification of EEO compliance if requested by the Government. See http://www.dol-esa.gov/preaward/pa_reg.html for more information. This registry is updated every two years and it does not provide information on the Parent Organization or other facility locations that have not been reviewed.

1.8. Offerors are not authorized to include in their proposal citations for, or linkages to, websites.

1.9. The length of your response to this solicitation is limited, as identified below. Take extreme care and attention to ensure that all required documents are included in the proposal. Information submitted beyond the page limitations, identified below, will not be evaluated and may be considered cause for rejection of your proposal:

VOLUME/TITLE	PAGE LIMITS	ELECTRONIC FORMAT
I - Technical Approach(Factor I)	8	1, PDF or EXCEL
II- Past Performance	5	1, PDF
III – Cost/Price (Factor II)	No limit	1, EXCEL (see 3.2 below)

1.10. By responding to this solicitation, the Offeror agrees to meet all the requirements incorporated herein, including those listed in Attachment 1: PWS, and agrees to all the terms, conditions, and provisions.

2. PROPOSAL CONTENT:

2.1. Volume I, Technical Approach – The Offeror shall submit electronically the proposed labor category and staffing levels (i.e. CFTEs, PM/POC, Instructor Lead/On-site TO Lead, etc.) to fulfill the requirements of the solicitation.

2.2 Volume III, Price - The Offeror shall submit its Price proposal electronically in Microsoft Excel format, utilizing any of the following versions: Microsoft Office 2010, 2013, 2016, 2019, or 2021. Spreadsheets shall be sent in a file format that includes all formulas, macro, and format information. Print image is not acceptable.

2.2.1 Offerors are required to submit a price response per the Pricing Schedule and Optional Support Chart located in Attachment 2. Please note: Offerors shall use care when completing Attachment 2 and shall ensure that the pricing reflected is mathematically correct and consistent between the two tabs. Do not breakdown or provide separate subcontractor pricing.

3. SUBMISSION INSTRUCTIONS:

3.1. GENERAL:

3.1.1. Your attention is called to the solicitation closing date and time of 7:00am ET, 16 March 2023. It is the Offeror's responsibility to assure its proposal is received by the date and time specified above. If your proposal is not received at the initial point of entry to the Government (Brandon.n.johnson24.civ@army.mil and angela.m.triplett.civ@army.mil) by the exact date and time specified above, it will be determined late and will not be evaluated. Proposal, as the term is used here, means ALL volumes and/or parts of the solicitation.

3.1.2. Responses shall be organized into separate electronic documents. All pages in each response shall be appropriately numbered and identified with the solicitation number. Printing shall be easily readable (12 point font (Times New Roman) or 11 point font proportional spacing). All charts and graphs shall be easily readable (no less than 10 point font). The Cover Letter, Table of Contents, and Abbreviations or Definitions will not be counted towards the 8 page limit. A page shall be counted as an 8 ½ " x 11" sheet of paper.

3.1.3. Ensure that all volumes are submitted in response to this solicitation. Failure to do so may result in your proposal not being considered. Your proposal shall be structured in a manner that clearly addresses the requirements for this solicitation. Responses that are overly verbose or include marketing material are not desired.

3.2. E-MAIL SUBMISSIONS:

3.2.1 Offerors are cautioned that e-mail is not instantaneous. It is recommended you submit your proposal prior to the closing date, allowing enough time to ensure the entire proposal is received on time to be considered for award. If all portions of any emailed proposal are not received by the solicitation closing deadline, the proposal shall be rejected as late (see FAR 52.215-1(c) (3)). It is the Offeror's responsibility to re-send your email submission if you do not receive a receipt confirmation. Due to Government exchange size limitations, individual e-mails that exceed 10 MB cannot be received, including the email itself plus all attachments. If your electronic proposal, including all attachments, is larger than 10 MB, you shall segment your proposal into a series of two (2) or more separate e-mails that individually are no larger than 10 MB. Emails

cannot be received if they contain compressed attachments; the Government's security software blocks these types of emails.

3.2.2. Offerors shall identify in the email subject line the solicitation number W91QF5-23-R-0013, Title, Message 1 of 5.

3.2.3. In the body of each e-mail message of the proposal, the Offeror shall provide a brief statement accounting for each email in relation to the entire proposal, e.g., Message 3 of 5, as well as an inventory of attachments, e.g., Attachment 1 of 4. (For example, "This is message 3 of a total of 5 messages constituting the proposal of XYZ Company. This message provides attachments 2 and 3 of a total of 6 attachments to our complete proposal.")

4. EVALUATION CRITERIA: Offerors will be evaluated on three (3) factors: 1) Technical Approach 2) Past Performance and 3) Price. The Government intends to enter into negotiations with the 8(a) offeror as authorized under FAR 15, Contracting by Negotiation procedures will be used to evaluate the offer and award this requirement. The proposed price will be evaluated in accordance with FAR 15.4. The Contracting Officer will estimate the fair market price of the work to be performed in accordance with FAR 19.807 and will make a determination that the offered price does not exceed the fair market price. The Government will evaluate the contractor's technical proposal to ensure that if reflects a sound understanding of this requirement and complies with the requirements in the solicitation. The government will award a contract only after a finding of technical acceptability and agreement has been reached on all terms and conditions to include payment of fair and reasonable price. The following factors shall be used to evaluate offers:

The Technical Factor/Sub-factor will be assigned one of the ratings defined below:

Rating	**Description**
Acceptable	Proposal meets the requirements of the solicitation.
Unacceptable	Proposal does not meet the requirements of the solicitation.

4.1. FACTOR I: TECHNICAL APPROACH: The proposal shall demonstrate a thorough understanding of the requirement through an adequate level of effort to ensure successful performance. Technical Approach shall include the following Subfactors:

Subfactor 1: Management Plan
Subfactor 2: Staffing Approach

4.2 FACTOR II: Past Performance: (4) Past performance information, will include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and CPARS. A total of three Past Performance Questionnaire are also accepted.

The following areas will be considered when reviewing history of past performance:

(a) *Quality of Product or Service* – compliance with contract requirements – technical excellence and know-how – successful phase-in and phase-out from previous clients – responsiveness and accuracy of communication – assignment of qualified and appropriate personnel

(b) *Timeliness of Performance* – meets milestones and deadlines – quick turnaround time on requests – promptly communicates issues– reliable – stays on schedule – responsive to technical direction – completes tasks on time.

(c) *Problem Resolution* – anticipates, avoids, or mitigates problems – proactive in monitoring web site for content freshness – satisfactorily overcomes or resolves problems – prompt notification of problems – recommends viable solutions

(d) *Cost Control* – consistently within task budgets – current, accurate, and complete billings – costs properly allocated – unallowable costs not billed – relationship of negotiated costs to actual costs – cost efficiencies.

(e) *Business Relations* – effective management – accountability for employee performance – business-like concern for customer's interests – effective use of web technology – effective supervision of staff – reasonable/cooperative behavior –flexible – maintains high employee morale.

(f) *Customer Service* – prompt responses and communication – understands and embraces service and program goals – team approach with the customer – satisfaction with the contractor's services – positive customer feedback — courteous interactions – initiative.

Acceptable	Based on the offeror's performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort, or the offeror's performance record is unknown.
Unacceptable	Based on the offeror's performance record, the Government has no reasonable expectation that the offeror will be able to successfully perform the required effort.

4.3. <u>FACTOR III: PRICE:</u> The Price Factor evaluation will not be given a rating; however, it will be evaluated using price analysis. The proposed price will be evaluated for reasonableness of proposed prices to accomplish the technical approach. The techniques and procedures described under FAR 15.404-1(b) will be the primary means of assessing PROPOSAL reasonableness. Reasonableness is defined as follows:

A price is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a prudent person in the conduct of competitive business.

The proposed number of hours will not be evaluated; however, Offerors shall perform all tasks in accordance with the PWS.

4.3.1. Evaluation of Option to Extend Services under 52.217-8. For the purposes of the award of this Contract, the Government intends to evaluate the option to extend services, provided under FAR 52.217-8, as follows:

4.3.1.1. The evaluation will consider the possibility that the option can be exercised within 30 days prior to the end of the contract and can be exercised in increments of one to six months, but for no more than a total of six months during the life of the contract.

4.3.1.2. The evaluation will assume that the prices for any option exercised under FAR 52.217-8 will be at the same rates as those in effect under the contract of the last option period of the pricing proposal.

4.3.1.3. The evaluation will assume that the addition of the price(s) of any possible extension(s) under FAR 52.217-8 to the total price for the basic requirement and the total price for the priced options has the same effect on the total price of all Proposals relative to each other. The ranking of Proposals based on price will not be affected, unless, after reviewing the Proposals, the Government determines that there is a basis for finding otherwise.

4.3.1.4. This evaluation will not obligate the Government to exercise any option under FAR 52.217-8.

4.3.2. Options. The total price of all CLINS to include optional CLINs will be added together and evaluated. The Government will also evaluate the price for each CLIN to ensure the price is not unbalanced in accordance with FAR 15.404-1(g). The Government may determine that an offer is unacceptable if the option costs are unbalanced. Evaluation of options shall not obligate the Government to exercise the optional labor.

Period for acceptance of offers. The offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

5. <u>BASIS FOR AWARD</u> – Lowest Priced Technically Acceptable

5.1. The Government intends to award a contract resulting from the solicitation to the Offeror whose proposal will provide the overall "Best Value" to the Government; Technical Approach and Price considered. The Contracting Officer will select the proposal with the lowest price that received an overall rating of "Technically Acceptable."

5.2. The Government intends to evaluate responses and award a contract without discussions/communications with Offerors. Therefore, the Offeror's initial proposal shall contain its best terms from a price and technical standpoint. However, the Government does reserve the right to negotiate with one or more, but not necessary all, Offerors for any reason, if we so desire. Any proposal revisions shall be limited to the items negotiated.

5.3. Proposals submitted in response to this solicitation will be evaluated by Government Subject Matter Experts. Careful, full, and impartial consideration will be given to all Proposals not otherwise rejected. A rating of *"Acceptable"* or *"Unacceptable"* shall be used for all non-price evaluation factors; see below. The non-price evaluation will only include the proposal's level of detail for the elements located in Factor I. Price will be evaluated for reasonableness.

Technical Rating	**Description**
Acceptable	Proposal clearly meets the minimum requirements of the solicitation.
Unacceptable	Proposal does not clearly meet the minimum requirements of the solicitation.

6. <u>REJECTION OF OFFERS:</u> Offerors shall carefully read, understand, and provide all the information requested in the solicitation. If there are parts of the proposal that are vague and/or ambiguous, request clarification from the Contract Specialist and/or the Contracting Officer before the established cut-off date for questions. The circumstances that may lead to the rejection of a proposal are:

6.1. When the proposal fails to meaningfully respond to the instructions specified. Examples of failure to meaningfully respond include:

6.1.1. When the Government is evaluating an Offeror's technical approach and a proposal merely repeats the solicitation PWS without elaboration or fails to present more than a statement indicating its capability to comply with the solicitation terms and does not provide support or detail how they will perform. The proposal shall provide convincing rationale to address how the Offeror intends to meet the Government's requirement. Statements such as "the Offeror understands, can or will comply with the PWS", (including referenced publications, technical data etc.); statements paraphrasing the PWS or parts thereof (including applicable publications, technical data etc.); and phrases such as "standard procedures will be employed" or "well known techniques will be used," etc., will be considered indicative of the Offeror's lack of understanding in response to the Government's requirements and may be considered unacceptable.

6.1.2. When the proposal fails to provide any of the data and information required in the proposal. Offerors shall assume that the Government has no prior knowledge of their facilities and experience, and will base its evaluation on the information presented in the Offeror's proposal. Elaborate brochures or documentation, binding, detailed artwork, or other embellishments are unnecessary and are not desired.

6.2. When the proposal reflects an inherent lack of technical competence or a failure to comprehend the complexity and risks required to perform the requirements due to submission of a proposal which is unachievable in terms of technical, labor mix, or schedule commitments.

6.3. When the proposal contains any unexplained significant inconsistency between the proposed effort and price, which implies the Offeror has (a) an inherent misunderstanding of the PWS, or (b) an apparent inability to perform the resultant contract.

6.4. When the proposal is unbalanced as to cost or price. An unbalanced offer is one which is based on costs or prices significantly high or low for one given period, versus another period.

6.5. There shall be a direct relationship between the effort expended and its cost or price for each basic and option period.

6.6. When the proposal contains major error(s), omission(s) and or deficiencies that indicate a lack of understanding or an approach that cannot be expected to meet requirements or involves a very high risk and none of these conditions can be corrected without major rewrites or revisions of the proposal.

6.7. When the proposal offers a product or service that does not meet all stated material requirements of the solicitation.

6.8. When the proposal is late, in accordance with FAR 52.215-1(c)(3) and the Electronic Submission Instructions herein.

6.9. When the proposal is not in full compliance with the terms and conditions of the solicitation.

6.10. When pricing is inconsistent between the Pricing Schedule and the Optional Support Chart.

7. POST AWARD-NOTICES AND DEBRIEFINGS: Post-award notices and debriefings will be provided for task orders over $5.5M IAW FAR 16.505(b)(6). Upon such notification, unsuccessful awardees may request and receive a debriefing. Unsuccessful awardees desiring debriefing shall make their request IAW the requirements of FAR 15.506, as applicable.